

DISTRICT COURT, PARK COUNTY, COLORADO 300 Fourth St. P.O. Box 190 Fairplay, CO 80440	DATE FILED: March 16, 2021 5:16 PM FILING ID: DE091A6AD215D CASE NUMBER: 2021CV30017
PLAINTIFF: SHELLEE LAWSON	▲ COURT USE ONLY ▲ Case No. 2021 cv _____ Division
DEFENDANT: SAFECO INSURANCE COMPANY OF AMERICA, a New Hampshire Stock Insurance Company	
COUNSEL FOR PLAINTIFF Gregg S. Rich, #31948 COOMBE CURRY RICH & JARVIS 1660 Lincoln St., Suite 2950 Denver, CO 80264 Phone: (303) 572-4200 Email: rich@ccrjlaw.com	
COMPLAINT AND JURY DEMAND	

Plaintiff Shellee Lawson, through her counsel, the law firm of Coombe Curry Rich & Jarvis, hereby submits the following Complaint and Jury Demand against Defendant Safeco Insurance Company:

GENERAL ALLEGATIONS

1. Shellee Lawson ("Plaintiff") is a Colorado resident and the owner of the real property and improvements located at 497 Pine Drive., Bailey, Colorado 80421 ("the Home").
2. On information and belief, Safeco Insurance Company of America ("Safeco") is an insurance company authorized to do business in the state of Colorado with a principal place of business located at 62 Maple Ave, Keene, NH 03431.
3. Safeco issued a homeowner's insurance policy number OY6257058 with effective dates of June 27, 2018 to June 27, 2018 (the "Policy"). Plaintiff was listed as the Named Insured and the Home was listed as the Insured Location under the Policy.

EXHIBIT

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4. On or about January 14, 2018, the Home suffered damage resulting from a water loss (the “Loss”). Plaintiff timely reported the loss to Safeco, which assigned the Loss claim number 036824809-01.

5. C.R.S. § 10-3-1115 provides:

A person engaged in the business of insurance shall not unreasonably delay or deny payment of a claim for benefits owed to or on behalf of any claimant.

For the purposes of this section and section 10-3-1116:

“First party claimant” means an individual, corporation, association, partnership, or other legal entity asserting an entitlement to benefits owed directly to or on behalf of an insured under an insurance policy. “First party claimant” includes a public entity that has paid a claim for benefits due to an insurer’s unreasonable delay or denial of the claim.

Colo. Rev. Stat. § 10-3-1115 (1)(a), (1)(b) & (1)(b)(I).

6. At all times relevant herein, Plaintiff was an “insured” pursuant to the language of the Policy.

7. Plaintiff is a first-party claimant pursuant to C.R.S. § 10-3-1115.

8. Defendant Safeco has denied coverage, in part, to the Plaintiff for the Loss under the Policy.

9. Defendant Safeco has failed and refused to pay Plaintiff for all covered damages under its Policy.

10. Plaintiff has satisfied or performed all conditions precedent to the commencement of this action.

11. Venue is proper in the District Court, Summit County, State of Colorado, pursuant to Rule 98, C.R.C.P., because the property which is the subject of the Underlying Claim is located in Park County, Colorado.

FIRST CLAIM FOR RELIEF
(Declaratory Judgment)

12. Plaintiff incorporates all previous allegations as if fully set forth herein.

13. Plaintiff is a person interested under the terms and provisions of the Policy.

14. Plaintiff and each Defendant dispute their respective rights, obligations and liabilities under the Policy.

15. Plaintiff is entitled to a declaratory judgment of this Court fixing and determining the rights and obligations of the parties under the Policies and interpreting and resolving the issues arising under the Policy.

SECOND CLAIM FOR RELIEF
(Breach of Insurance Contract)

16. Plaintiff incorporates all previous allegations as if fully set forth herein.

17. Pursuant to the terms and provisions of C.R.S. § 10-1-102(7), a policy of insurance is a contract providing indemnity or payment of a specified benefit when a loss occurs as described in the policy. The Policy is an insurance policy pursuant to C.R.S. § 10-1-102(7).

18. The Policy contains covenants of good faith and fair dealing under the terms and provisions of the Policy and/or Colorado law.

19. Under these covenants, Defendant Safeco is obligated to fairly and timely pay for covered losses, including the Loss and may not deny a claim covered under the Policy without a reasonable basis.

20. Defendant Safeco owes a duty to Plaintiff, as its insured under the Policy, to pay for all covered losses, including the Loss.

21. Defendant Safeco failed to comply with its duties when it refused to timely pay for all covered losses suffered by Plaintiff, including the Loss.

22. The failure of Defendant Safeco to properly and timely pay for all covered losses has caused harm, damage, and injury to the Plaintiff.

THIRD CLAIM FOR RELIEF
(Unreasonable Delay or Denial Under C.R.S. § 10-5-1115/1116)

23. Plaintiff incorporates all previous allegations as if fully set forth herein.

24. Defendant Safeco denied Plaintiff coverage for a first party claim, to wit, a portion of the Loss.

25. Defendant Safeco's denial of coverage for a portion of the Loss was unreasonable.

26. As a direct and proximate result of Defendant Safeco's unreasonable denial of a portion of the Loss, Plaintiff is entitled to recovery of the unreasonably

denied amount of the Loss, plus statutory damages in amount of two times the amount of the Loss, plus costs and attorney fees.

WHEREFORE, Plaintiff prays for judgment as follows:

- A. For a declaratory judgment of this Court fixing and determining the rights and obligations of the parties;
- B. For judgment in favor of Plaintiff and against the Defendant, for damages in an amount to be proven at trial, consisting of covered losses that were denied in violation of Defendant's contractual obligations under the Policy
- C. For damages for the unreasonable delay or denial of the Loss, or any part of it, in amount equal to two times the covered benefit that was unreasonably delayed and/or denied;
- D. For an award of Plaintiff's costs and attorneys' fees;
- E. For pre-judgment and post-judgment interest as provided by law;
- F. For judgment for moratory interest; and
- G. For such other and further relief as this Court deems fit and proper.

PLAINTIFF DEMANDS A JURY TRIAL ON ALL ISSUES AND ON ALL CLAIMS SO TRIABLE

Submitted 16th day of March, 2021.

COOMBE CURRY RICH & JARVIS



Gregg S. Rich, #31948

Counsel for Plaintiff

Plaintiff's Address

497 Pine Drive
Bailey, Colorado 80421